

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2026CUBC062059: JUAN RINCONNUNO vs GENERAL MOTORS, LLC
08/21/2026 in Department 44
Demurrer & Motion to Strike

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motions:

1. General Motors LLC’s Demurrer to Plaintiff’s First Amended Complaint
2. General Motors LLC’s Motion to Strike Punitive Damages from Plaintiff’s First Amended Complaint

Tentative Ruling:

Defendant General Motors LLC’s demurrer to Plaintiff’s Third Cause of Action for Fraudulent Concealment is OVERRULED.

Defendant General Motors LLC’s demurrer to Plaintiff’s Fourth Cause of Action for Violation of the Consumers Legal Remedies Act is OVERRULED. The FAC sufficiently alleges actionable representations and omissions under the CLRA. The Court further finds that the FAC sufficiently alleges compliance with the procedure authorized by Civil Code § 1782(d): the original Complaint sought CLRA injunctive relief, alleged contemporaneous written notice to GM on February 27, 2026, and contemplated amendment after expiration of the 30-day period; the FAC

was thereafter filed on April 1, 2026 and alleges that the statutory notice was sent by certified mail and that GM failed to provide corrective relief within 30 days.

Defendant General Motors LLC's motion to strike Plaintiff's prayer for punitive damages is DENIED. The surviving fraudulent-concealment allegations, taken as true at the pleading stage, allege conduct capable of constituting fraud or malice under Civil Code § 3294, and the FAC expressly alleges that the challenged conduct was perpetrated, authorized, or knowingly ratified by an officer, director, or managing agent.

Plaintiff is ordered to give notice.